

# THE UNIVERSAL HOUSE OF JUSTICE

1998-12-01

1 documents prepared by the lawyer who courageously agreed to conduct an  
2 appeal against the conviction of the three bahá'ís imprisoned in mashhad,  
3 despite various threats and intense pressure to dissuade him. The lawyer, mr.  
mahmud kiani bahjestani, a muslim, submitted an appeal to the

## **Supreme court on behalf of mr. Sirus zabihi-m oghaddam, mr. hedayat**

4 kashefi-Najafabadi and mr. Ataollah hamid-Nasirizadeh, the first two of  
5 whom have been sentenced to death, and the third to ten years' imprisonment. mr. b  
ahjestani was not able to interview his clients, nor was he  
6 permitted to have copies of the material in the defendants' files held by the court. he  
was, however, allowed to view those files and to make such notes  
7 as he wished. he did not appear before the Supreme court but submitted  
8 his appeal in writing.

9 The first of the documents enclosed is a provisional translation of the  
10 notes taken by mr. b ahjestani from his clients' files held by the judiciary in  
11 mashhad. The second is a provisional translation of the appeal submission  
12 itself.

13 As you are aware, bahá'í prisoners have rarely been allowed a lawyer dur-  
14 ing their so-called trials. reference to page 3 of the enclosed extracts from  
15 the defendants' files (pages 38–40) and to section 4 on page 3 of the appeal 288.1

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289 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

290 652 submission makes it clear that, before the initial trial, branch 8 of the mash-  
291 had court summarily imposed a lawyer of its own choosing, mr. ehtesham

292 Shahabi, on the accused, failing to observe the legal requirement to allow

293 them ten days to arrange for their own lawyer. The last sentence of the extract from  
pages 118–120 of the accused's files shows that when branch 3

294 of the mashhad court came to retry the case, it having been referred back

**by the Supreme court, the defendants were once more deprived of their**

295 right to select their own advocate, as mr. Shahabi had again been appointed  
296 to represent them. in light of the foregoing, the international uproar at the  
297 evident injustices in their case may well have been a significant factor in the  
298 prisoners' having for the first time been allowed to engage a lawyer, to make  
299 their appeal.

**The two enclosed documents confirm beyond any shadow of a doubt the**

300 total baselessness of the claim by the iranian government that mr. ruhol-  
301 lah rohani was executed for crimes threatening the security of iran, and  
302 that the three prisoners arrested in mashhad with him at about the same  
303 time, who have now appealed against their sentences, are guilty of any such  
304 crimes. in the absence of any merit in the government's claims, its attri-  
305 bution of crimes against the state to these prisoners appears to be merely  
306 another attempt to silence the protests of civilized countries and to justify its  
inhuman treatment of its bahá'í citizens.

307 The first item in the lawyer's extracts from his clients' files is a copy of  
308 the text of a document that the authorities asked the prisoners to sign, com-mitting  
themselves to desist from participation in bahá'í activities. had the  
309 prisoners complied with the authorities' wishes by making this commit-ment, they  
would surely have been freed. you will note that there is nothing  
310 in this commitment regarding activities by the accused against the security of the  
country.

311 The spuriousness of the charge that the three defendants acted against  
312 national security becomes even clearer when one studies the text of the lawyer's  
appeal submission to the Supreme court. unfortunately, however,  
313 jurisdiction over the bahá'í community has been given to the ministry of  
314 information, which deals with security and intelligence matters and comes  
315 under the direction of the religious leader of the islamic republic of iran  
316 (Ayatollah khamenei). further, the appeal of the three accused is dealt with  
317 by the judiciary, which also falls under a fundamentalist ally of mr. khome-  
318 nei, and this department has normally paid no attention to the appeals of bahá'ís in  
the past. consequently, it is not known whether the submission 288.4

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65of the lawyer in the present case will be treated any differently. it is hoped

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that intensive pressure brought to bear on the iranian government from

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outside the country and the resolutions passed by such bodies as the euro-

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pean union and the united Nations will make a difference. . . .

### **Department of the secretariat**

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### **Update on the Situation of the Bahá'ís**

### **Imprisoned in Iran**

[signed: The Universal House of Justice]